



ConsortiEX Inc.
 1000 N Water St., Suite 950
 Milwaukee, WI 53202
 Phone: (414) 231-4575
 Email: Rene@consortiex.com

QUOTE

Quote Number: 122820181005RB
Quote Date: December 28th, 2018
Expiration Date: December 31st, 2018

Customer: Mount Sinai Health System
Address: 150 E42nd St, 2.FL.24.8
 New York, NY 10017

Contact: Vincent Giambanco
Phone: 646 605 7460
Email: vincent.giambanco@mountsinai.org

Service / Modules	Initial Subscription Period	Fee
Drug Supply Chain Security Act "DSCSA" Compliance as a Service Application for 8 listed facilities	60 Months from date of acceptance	\$40,000 Annually
Implementation Fee for 8 listed facilities	Year 1 One-time	\$0.00
T3 Paper Document Backlog (Optional)	\$2.90 /document	Based on # of documents
T3 CSV or XML File Conversion (Optional)	Backloads - Electronic Files	\$10,000.00

Facilities:

Mount Sinai Queens	South Nassau Communities Hospital
Mount Sinai Brooklyn	Mount Sinai St. Luke's Medical Center
Mount Sinai Beth Israel Medical Center	Mount Sinai Eye and Ear Infirmary
Mount Sinai Medical Center	Mount Sinai West

Other Terms and Service Description

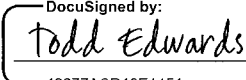
Drug Supply Chain Security Act Statement of Compliance:

Company will store T3 documents for the required minimum of six years and process documents in compliance with the FDCA Sec. 581 (27) (A-G).

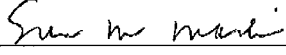
1. Through Company, Customer will be able to receive, update, and provide required transaction documents for all shipments/receipt of drug, returns, drop shipments, and exceptions, including product exchange to institutions outside of Customer and Customer's definition.
2. Company will be the single source for storing & retrieving DSCSA documents.
3. Company will enable Customer to meet the DSCSA requirement for information within the 2-day timeframe, in response to an FDA request.
4. Company will monitor and audit T3 documents for missing or unknown NDCs, addresses or description fields as required.
5. Company will provide timely system updates in response to changes in DSCSA regulations.

This Quote is subject to the attached DSCSA Compliance as a Service application Terms and Conditions, which together with this Quote constitute the entire agreement between the Customer and ConsortiEX for the Services listed on this Quote. The undersigned hereby represents that he or she is authorized to enter into this Agreement on behalf of the Customer and to bind the Customer to the terms of this Agreement. This Quote is not binding on ConsortiEX until signed by an authorized representative of ConsortiEX. This Quote expires on the expiration date stated above.

ConsortiEX Inc.

Signature: 
Print Name: Todd Edwards
Title: Vice President
Date: 2/3/2019

**Customer Authorized Signature and
Acceptance of Agreement**

Signature: 
Print Name: SUSAN M. MASLANI
Title: VP Chief Pharmacy Officer
Date: 1/28/19

DSCSA COMPLIANCE AS A SERVICE TERMS AND CONDITIONS

1. Agreement. These DSCSA Compliance as a Service Terms and Conditions ("**Terms**") govern the relationship between ConsortiEX, Inc., ("**ConsortiEX**") and the customer whose name appears in the quote ("**Customer**") to which these Terms are attached ("**Quote**"). The Quote and these Terms are the entire agreement between the parties ("**Agreement**") with respect to the Services, and none of the terms in any purchase order or other document of either party will apply.

2. Authorized Users. Customer will designate certain of Customer's employees as "**Authorized Users**." Customer will be responsible for issuing each Authorized User a user ID and password, which may not be shared or used by more than one person.

3. Services. During the Subscription Period, and subject to Customer's compliance with this Agreement, ConsortiEX grants to Customer a non-exclusive, non-transferrable, non-sublicensable license for Customer's Authorized Users to access and use the DSCSA Compliance as a Service as specified on the Quote and made available by ConsortiEX ("**Services**") for Customer's internal business purposes. ConsortiEX will provide the Service to Customer and its Authorized Users through the internet.

4. Restrictions. Customer agrees not to (a) sell, lease, sublicense, assign or otherwise transfer its rights to access and use the Services; (b) copy, modify, publish, sell, export, distribute, transfer or perform, or prepare derivative works of, reverse engineer, decompile or otherwise attempt to extract the source code or source data from the Services; (c) use the Services in violation of any applicable law or regulation; (d) provide, post, or transmit any data that contains any viruses or programming routines that may damage, interrupt or appropriate the Services; (e) use or make the Services available on a service bureau or time sharing basis; attempt to disable or circumvent any security mechanisms used by the Services or otherwise attempt to gain unauthorized access to any portion or feature of the Services; (f) use any device, software or routine to interrupt or interfere with, or attempt to interrupt or interfere with, the proper operation and working of the Services or any transaction being conducted on the Services, or (g) permit any Authorized User or other third party to do any of the foregoing.

5. Suspension. If Customer or any Authorized User violates the restrictions in Section 4 or otherwise breaches this Agreement, or if ConsortiEX believes that Customer's or any Authorized User's access to the Services poses a security risk, then ConsortiEX may deactivate or suspend Customer's or any Authorized User's access. ConsortiEX will notify Customer of any deactivation or suspension. ConsortiEX will have no liability for, and will not refund any fees to Customer for, a deactivation or suspension under this Section 5.

6. Subscription Period. Customer and the Authorized Users will have access to the Services only during the subscription period specified in the Order Form (the "**Initial Subscription Period**"). The Subscription Period will renew automatically on an annual basis (the "**Additional Subscription Period**" and together with the Initial Subscription Period, the "**Subscription Period**") unless either party notifies the other party in writing of its intention not to renew at least **60 days** before the end of the Subscription Period.

7. Termination. Either party may terminate this Agreement by written notice to the other party upon a material breach by the other party if the breaching party does not cure the breach within 30 days. If the breach is cured within the 30-day period, this Agreement will continue in full force and effect. If the breach is not cured within the 30-day period, the Agreement will immediately terminate at the end of the 30-day period. In addition, ConsortiEX may terminate this Agreement if Customer does not make payments when they are due.

8. Subscription Fees. Fees for the Initial Subscription Period are described on the Order Form. Fees for any Additional Subscription Period will be according to ConsortiEX then-current fee schedule. ConsortiEX will invoice Customer on an annual basis. Amounts invoiced to Customer are due 30 days after the date of the invoice. All fees are nonrefundable.

9. Service Levels. ConsortiEX will make the Services available 24/7 except for interruptions due to maintenance or downtime beyond Licensor's reasonable control. Support will be available through the Help Desk, (414) 231-4575 and support@consortiex.com, from 8:00 a.m. to 4:30 p.m. Central Time Monday through Friday, excluding holidays.

10. Ownership. All right, title, and interest in and to the Services, and any documentation or other materials provided by ConsortiEX ("**ConsortiEX Properties**"), including all intellectual property rights therein, are and will remain with ConsortiEX. Customer has no right, license or authorization with respect to any of the ConsortiEX Properties except as expressly set forth in Section 2.

11. Customer Data. As between Customer and ConsortiEX, Customer will own all data uploaded or submitted by Customer to the Services ("**Customer Data**"). ConsortiEX will treat the Customer Data as confidential, will not disclose the Customer Data except as provided in this Agreement or required by law, and will not use Customer Data for purposes other than providing the Services.

12. Usage Data. ConsortiEX may collect data about the Customer's and the Authorized User's use of the Software and the Services ("**Usage Data**") for benchmarking and performance monitoring, to improve the Services, and for other internal uses. ConsortiEX will own all Usage Data and Customer will not have any right or access to the Usage Data.

13. Confidentiality. All information and material that may be disclosed by one party to the other ("**Disclosing Party**") in the course of performing a party's obligations under this Agreement ("**Confidential Information**") is considered confidential and proprietary to the Disclosing Party and will only be used by the party receiving the information ("**Receiving Party**") as necessary to perform its obligations under this Agreement. Confidential Information may not be disclosed to third parties and Receiving Party will protect it using the same degree of care as the Receiving Party uses to protect its own confidential information, but in no event less than a reasonable degree of care. Receiving Party will be responsible for ensuring that each person who accesses the Disclosing Party's Confidential Information on the Receiving Party's behalf complies with the confidentiality obligations in this Agreement. The obligations under this Section will not cover any information that is publicly disclosed by the Disclosing Party

without restrictions on disclosure, any information that has been or is developed independently by the Receiving Party without violations of obligations of confidentiality or the use of Disclosing Party's Confidential Information, any information that falls into the public domain without fault of the Receiving Party from a third party without restriction, or any information that is rightly in the possession of the Receiving Party at the time of disclosure by the Disclosing Party. Notwithstanding the foregoing restrictions, the Receiving Party may disclose any Confidential Information of the Disclosing Party to the extent required by an order of any court or governmental authority, but only after the Disclosing Party has been notified and has had the opportunity, if possible, to obtain reasonable protection for the information in connection with the disclosure.

14. Warranty. ConsortiEX warrants that the Services will operate in substantial conformity with the quote provided by ConsortiEX to Customer. In the event of any breach of the warranty in this Section, Customer's sole and exclusive remedy will be for ConsortiEX to correct the reported nonconformity within a commercially reasonable period. Customer acknowledges that communications and transactions conducted online may not be absolutely secure, that there may be system or Internet failure, or interruptions of service from third-party suppliers, that limit Customer's accessibility to or use of the Services, and that online services are not guaranteed to be error-free or available at all times. By using the Services, Customer accepts all responsibility and risk associated with the use of the Services and communications via the internet generally.

15. DISCLAIMER OF ALL OTHER WARRANTIES. THE EXPRESS WARRANTIES IN THIS AGREEMENT ARE IN LIEU OF, AND CONSORTIEX DISCLAIMS, ALL OTHER REPRESENTATIONS OR WARRANTIES (EXPRESS OR IMPLIED, ORAL OR WRITTEN), WHETHER ARISING BY LAW, CUSTOM OR USAGE IN THE TRADE, COURSE OF DEALING, OR OTHERWISE, INCLUDING IMPLIED WARRANTIES OF NON-INFRINGEMENT, MERCHANTABILITY, AND FITNESS OR SUITABILITY FOR ANY PURPOSE.

16. LIMITATION OF LIABILITY. IN NO EVENT WILL CONSORTIEX BE LIABLE UNDER ANY LEGAL OR EQUITABLE THEORY FOR ANY: (a) LOSS OF PRODUCTION, USE, BUSINESS, REVENUE OR PROFIT OR DIMINUTION IN VALUE; (b) IMPAIRMENT, INABILITY TO USE OR LOSS, INTERRUPTION OR DELAY OF THE SERVICES, (c) LOSS, DAMAGE, CORRUPTION OR RECOVERY OF DATA, OR BREACH OF DATA OR SYSTEM SECURITY, OR (d) CONSEQUENTIAL, INCIDENTAL, INDIRECT, EXEMPLARY, SPECIAL, ENHANCED OR PUNITIVE DAMAGES. IN NO EVENT WILL CONSORTIEX'S AGGREGATE LIABILITY UNDER THIS AGREEMENT EXCEED THE AMOUNT PAID BY CUSTOMER TO CONSORTIEX DURING THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO THE LIABILITY. THE LIMITATIONS IN THIS SECTION APPLY REGARDLESS OF WHETHER CONSORTIEX WAS ADVISED OF THE POSSIBILITY OF THE LOSSES OR DAMAGES OR THE LOSSES OR DAMAGES WERE OTHERWISE FORESEEABLE, AND

NOTWITHSTANDING THE FAILURE OF ANY AGREED OR OTHER REMEDY OF ITS ESSENTIAL PURPOSE.

17. Remedies. Upon a breach or threatened breach by a party of Sections 4, 10 or 13, which would cause irreparable harm that would not be sufficiently remedied by an award of damages, the injured party may seek injunctive or other equitable relief in a court of competent jurisdiction without the posting of a bond, proof of damages or other similar requirement. Nothing herein will be construed as prohibiting the non-breaching party from pursuing any other remedies available to it for the breach or threatened breach, including the recovery of damages.

18. Survival. The following provisions will survive any expiration or termination of this Agreement: Sections 10, 12, 13, 16, 17, 18 and 19.

19. Miscellaneous.

(a) The provisions in this Agreement are severable. If any portion of a provision is determined to be unenforceable, the unenforceable portion will be modified to give the fullest possible effect to the provision and the remainder of this Agreement will remain in full effect.

(b) This Agreement may not be modified, amended or otherwise changed in any manner except by written instrument signed by both parties. A waiver by any party to this Agreement of any of its terms or conditions in any one instance will not be construed as a general waiver of that term or condition or of any subsequent breach. No failure or delay on the part of either party to exercise any right, power or privilege under this Agreement will operate as a waiver thereof, nor will any single or partial exercise of any right, power or privilege hereunder preclude any other or further exercise thereof or the exercise of any other right, power or privilege.

(c) Customer may not assign any of its rights or obligations under this Agreement without ConsortiEX's prior written consent.

(d) This Agreement will be governed by, and construed in accordance with, the laws of the State of Wisconsin, without regard to its conflict of law principles.

(e) This Agreement will not be effective or enforceable against either party unless and until each party has signed on the signature page hereof. This Agreement may be executed in any number of counterparts, each of which will be deemed to be an original, and all of which together will constitute one and the same agreement. Each party acknowledges that an original signature or a copy thereof transmitted by facsimile or by PDF will constitute an original signature for purposes of this Agreement.